



Republic of the Philippines
HOUSE OF REPRESENTATIVES
Quezon City



NINETEENTH (19th) CONGRESS
Second Regular Session

House Bill No. **9540**

Introduced by: Hon. Ma. Victoria Co – Pilar

EXPLANATORY NOTE

As the country's basic unit, the barangay serves as the primary planning and implementing unit of government programs, basic services, projects and activities.

The conduct of Barangay and Sangguniang Kabataan elections in the Philippines are pivotal in our democratic system, as these governing units are the foundation of local governance and the stepping stone for future leaders. However, these elections have faced numerous challenges, including irregularities, inefficiencies, and a lack of transparency in the past. The manual process of voting and counting has been susceptible to human error and fraud, which undermine the trust and credibility of these elections.

In the latest National and Local Elections concluded last May 9, 2022, the Commission on Elections lauded that this election has recorded the fastest processing of results and the highest voter turnout compared to the previous years since the adoption of the Automated Election System in 2010. This manifests the practicality and efficiency of adopting timely technology to expedite the system of elections and streamline our democratic process.

This proposed bill seeks to address these issues by advocating for the implementation of automated systems for both the Barangay and SK elections. The key features of this proposal include the use of Automated Election System (AES)

which will be mandated in all elections. Voters will cast their ballots electronically, and the system will automatically tabulate the results.

In view of the foregoing, passage of this bill is earnestly sought.



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**AN ACT AUTHORIZING THE COMMISSION ON ELECTIONS TO USE AN
AUTOMATED ELECTION SYSTEM IN THE CONDUCT OF BARANGAY AND
SANGGUNIANG KABATAAN ELECTIONS, AMENDING FOR THE PURPOSE
REPUBLIC ACT NO. 8436, AS AMENDED BY REPUBLIC ACT 9369, AND OTHER
RELATED ELECTION LAWS, PROVIDING FUNDS THEREFOR**

*Be it enacted by the Senate and House of Representatives of the Philippines in Congress
assembled:*

1 **SECTION 1.** Section 2 of Republic Act 8436 is amended as follows:

2 “SEC. 2. *Definition of Terms.* – As used in this Act, the following terms shall
3 mean:

4
5 “xxx”
6

7 “6. City/municipal/district/provincial/BARANGAY/SANGGUNIANG
8 KABATAAN certificate of canvass – a document in electronic and printed
9 form containing the total votes in figures obtained by each candidate in a
10 city/municipality/district/province/BARANGAY/SANGGUNIANG
11 KABATAAN as the case may be. The electronic certificate of canvass shall be
12 the official canvass results in the aforementioned jurisdictions;”

13 “xxx”
14

15 “9. *Counting Center* – a public place within the city/municipality/BARANGAY
16 or in such other places as may be designated by the Commission where the

1 official ballots cast in various precincts of the city/municipality/BARANGAY
2 shall be counted. Polling places of voting centers may also be designated as
3 counting centers;”
4

5 **SECTION 2.** Section 6 of Republic Act 8436 is hereby amended to read as follows:

6 “SEC. 5. *Authority to Use an Automated Election System.* – To carry out the
7 above-stated policy, the Commission on Elections, herein referred to as the
8 Commission, is hereby authorized to use an automated election system or
9 systems in the same election in different provinces, whether paper-based or a
10 direct recording electronic election system as it may deem appropriate and
11 practical for the process of voting, counting of votes and
12 canvassing/consolidation and transmittal of results of electoral exercises:
13 *Provided,* that for the regular national, local, BARANGAY, AND
14 SANGGUNIANG KABATAAN election, which shall be held immediately
15 after the effectivity of this Act, the AES shall be used in at least two highly
16 urbanized cities and two provinces each in Luzon, Visayas, and Mindanao, to
17 be chosen by the Commission: *Provided, further,* that the local government
18 units whose officials have been the subject of administrative charges within
19 sixteen (16) months prior to the May 14, 2007 elections shall not be chosen:
20 *Provided finally,* that no area shall be chosen without the consent of the
21 Sangguniang of the local government unit concerned. The term local
22 government unit as used in this provision shall refer to a highly urbanized city
23 or province. In succeeding regular national, local, BARANGAY, AND
24 SANGGUNIANG KABATAAN elections, the AES shall be implemented
25 nationwide.”
26

27 **SECTION 3.** Section 11 (1) of Republic Act 8436 is hereby amended to read as follows:

28 “SEC. 11. *Functions of the Technical Evaluation Committee* – The Committee
29 shall certify, through an established international certification entity to be
30 chosen by the Commission from the recommendations of the Advisory Council,
31 not later than three months before the date of the electoral exercise,
32 categorically stating that the
33 AES, including its hardware and software components, is operating properly, in
34 accordance with the provisions of this Act based, among others, on the
35 following documented results:

36 “1. The successful conduct of a field-testing process followed by a
37 mock election event in or more cities/municipalities/BARANGAYS;

38
39 “xxx”

1 **SECTION 4.** Section 20 of Republic Act 8436 is hereby amended to read as follows:

2 “SEC. 20 *Notice of Designation of Counting Centers.* – The election officer
3 shall post prominently in his/her office, in the bulletin boards at the
4 city/municipal/BARANGAY/SANGGUNIANG KABATAAN hall and in three
5 other conspicuous places in the city/municipality/BARANGAY, the notice on
6 the designated counting center(s) for at least three weeks prior to election day.
7 The notice shall specify the precincts covered by each counting center and the
8 number of registered voters in each of the said precincts. The election officer
9 shall also furnish a copy of the notice to the headquarters or official address of
10 the political parties or independent candidates within the same period. The
11 election officer shall post in the Commission website concerned the said notice
12 and publish the notices in the local newspapers. Where the policing place or
13 voting center is also the designated counting center, such information shall be
14 contained in the notice.”

15
16 “xxx”
17

18 **SECTION 5.** Section 25 of Republic Act 8436 is hereby amended to read as follows:

19 “SEC. 25. *Canvassing by Provincial, City, District, and Municipal Boards of*
20 *Canvassers.* – The city or municipal board of canvassers shall canvass the votes
21 for the president, vice-president, senators, and parties, organizations or
22 coalitions participating under the party-list system by consolidating the
23 electronically transmitted results or the results contained in the data storage
24 devices used in the printing of the election returns. Upon completion of the
25 canvass, it shall print the certificate of canvass of votes for president, vice-
26 president, senators and members of the House of Representatives and elective
27 provincial officials and thereafter, proclaim the elected city or municipal
28 officials, as the case may be.

29
30 “xxx”
31

32 "The district/provincial board of canvassers shall canvass the votes for
33 president, vice-president, senators, members of the House of Representatives
34 and elective provincial officials by consolidating the results electronically
35 transmitted from the city/municipal consolidating centers or the results
36 contained in the data storage devices submitted by the board of canvassers of
37 the municipalities and component cities. Upon completion of the canvass, it
38 shall produce the certificates of canvass votes for president, vice-president and

1 senators and thereafter, proclaim the elected members of the House of
2 Representatives and the provincial official.”

3
4 “THE BARANGAY BOARD OF CANVASSERS SHALL CANVASS THE
5 VOTES FOR BARANGAY COUNCIL OFFICIALS, SUCH AS THE
6 CAPTAIN/PUNONG BARANGAY, COUNCILORS/KAGAWADS, AND
7 THE SANGGUNIANG KABATAAN COUNCIL, FROM CHAIRPERSON
8 TO COUNCILORS/KAGAWADS BY CONSOLIDATING THE RESULTS
9 ELECTRONICALLY TRANSMITTED RESULTS CONTAINED IN THE
10 DATA STORAGE DEVICES USED IN THE PRINTING OF THE
11 ELECTION RETURNS. UPON COMPLETION OF THE CANVASS, IT
12 SHALL PRINT THE CERTIFICATE OF CANVASS OF VOTES THE
13 BARANGAY CAPTAIN, KAGAWADS, SANGGUNIANG KABATAAN
14 CHAIRPERSON, AND SANGGUNIANG KABATAAN KAGAWADS, AND
15 THEREAFTER, PROCLAIM THE ELECTED BARANGAY AND SK
16 OFFICIALS, AS THE CASE MAY BE.”

17
18 “The BARANGAY, SANGGUNIANG KABATAAN, municipal, city, district,
19 and provincial certificates of canvass of votes shall each be supported by a
20 statement of votes.”

21
22 “xxx”
23

24 **SECTION 6.** Section 26 of Republic Act 8436 is hereby amended to read as follows:

25 “SEC. 26. *Number of Copies of Certificates of Canvass of Votes and their*
26 *distribution.* - (a) The certificate of canvass of votes for president, vice-
27 president, senators, members of the House of Representatives, parties,
28 organization or coalitions participating under the party-list system and elective
29 provincial, MUNICIPAL, BARANGAY, AND SANGGUNIANG
30 KABATAAN officials shall be produced by the city or municipal board of
31 canvassers and distributed as follows:

32
33 “xxx”
34

35 **SECTION 7:** Section 27 of Republic Act No. 7166, as amended by Republic Act No. 8045
36 and Republic Act No. 8173 is hereby further amended to read as follows:

37 “SEC. 27. *Number of Copies of Election Returns and their Distribution.* - The
38 board of election inspectors shall prepare in handwriting the election returns in

1 their respective polling place, in the number of copies herein provided and in
2 the form to be prescribed and provided by the Commission.

3
4 "The copies of election returns shall be distributed by the chairman of the board
5 of election inspectors as follows:

6
7 "xxx"

8
9 (b) In the election of local officials;

10 "(1) The first copy shall be delivered to the BARANGAY, city, or
11 municipal board of canvassers;

12
13 **SECTION 8.** Section 26 of Republic Act No. 7166 is hereby amended to read as follows:

14 "SEC. 26. Official Watchers. - Every registered political party or coalition of
15 political parties, and every candidate shall each be entitled to one watcher in
16 every polling place and canvassing center: Provided That, candidates for the
17 Sangguniang Panlalawigan, Sangguniang Panlungsod, Sangguniang Bayan,
18 SANGGUNIANG BARANGAY, AND SANGGUNIANG KABATAAN
19 belonging to the same slate or ticket shall collectively be entitled to only one
20 watcher."

21
22 "xxx"

23
24 **SECTION 9.** Section 28 of Republic Act No. 7166 is hereby amended as follows:

25 "SEC. 28. Canvassing by Provincial City, District, *MUNICIPAL, AND*
26 *BARANGAY* Board of Canvassers. - a) The City, *MUNICIPAL, OR*
27 *BARANGAY* of board of canvassers shall canvass the election return of
28 President, Vice president, Senator and Members of the House of
29 Representatives and for elective provincial, *CITY, MUNICIPAL,*
30 *BARANGAY, AND SANGGUNIANG KABATAAN* officials: Provided, That
31 the returns for national positions shall be canvassed first Upon completion of
32 the canvass, it shall prepare the certificate of canvass for of Representatives and
33 elective provincial officials, announce the results of the election for national
34 positions in the city or municipality, and thereafter, proclaims the elected city,
35 municipal, *BARANGAY, AND SANGGUNIANG KABATAAN* officials, as
36 the case may be.

37
38 "THE BARANGAY BOARD OF CANVASSERS SHALL CANVASS THE
39 VOTES FOR BARANGAY COUNCIL OFFICIALS, SUCH AS THE

1 CAPTAIN/PUNONG BARANGAY, COUNCILORS/KAGAWADS, AND
2 THE SANGGUNIANG KABATAAN COUNCIL, FROM CHAIRPERSON
3 TO COUNCILORS/KAGAWADS BY CONSOLIDATING THE RESULTS
4 ELECTRONICALLY TRANSMITTED RESULTS CONTAINED IN THE
5 DATA STORAGE DEVICES USED IN THE PRINTING OF THE
6 ELECTION RETURNS. UPON COMPLETION OF THE CANVASS, IT
7 SHALL PRINT THE CERTIFICATE OF CANVASS OF VOTES THE
8 BARANGAY CAPTAIN, KAGAWADS, SANGGUNIANG KABATAAN
9 CHAIRPERSON, AND SANGGUNIANG KABATAAN KAGAWADS, AND
10 THEREAFTER, PROCLAIM THE ELECTED BARANGAY AND SK
11 OFFICIALS, AS THE CASE MAY BE.”

12
13 “b) ...”

14 “xxx”
15

16 **SECTION 10. *Appropriations*** – Funds necessary to carry out the provisions of this Act shall
17 be charged against the appropriations of the COMELEC. Thereafter, the amount necessary
18 for the continuous implementation of this Act shall be included in the annual General
19 Appropriations Act.
20

21 **SECTION 11. *Implementing Rules and Regulations***. – Within ninety (90) days from the
22 effectivity of this Act, the COMELEC, in cooperation with the Department of Information
23 and Communications Technology, shall promulgate the rules and regulations for the effective
24 implementation of this Act.
25

26 **SECTION 12. *Repealing Clause***. – All laws, presidential decrees, executive orders,
27 memoranda, rules, and regulations contrary to or inconsistent with the provisions of this Acts
28 are hereby repealed, amended, or modified accordingly.
29

30 **SECTION 13. *Separability Clause***. – If any part or provision of this Act is declared
31 unconstitutional or invalid, the remaining parts of provisions not affected shall remain in full
32 force and effect.
33

34 **SECTION 14. *Effectivity***. – This Act shall take effect fifteen (15) days after its publication
35 in the *Official Gazette* or in a newspaper of general circulation.
36

37 **Approved,**